

IN THE SENATE

SENATE BILL NO. 1299

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO DIGITAL IDENTIFICATION; AMENDING CHAPTER 23, TITLE 67, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 67-2364, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING LIMITATIONS ON DIGITAL IDENTIFICATION; PROVIDING SEVERABILITY; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 23, Title 67, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 67-2364, Idaho Code, and to read as follows:

67-2364. LIMITATIONS ON DIGITAL IDENTIFICATION. (1) As used in this section:

(a) "Digital identification" means an electronic credential issued by a public entity and stored or displayed on a personal electronic device to establish a person's identity, age, or legal status.

(b) "Public entity" means the state of Idaho or any agency, department, board, commission, institution, political subdivision, or contractor acting on behalf of the state.

(2) (a) A public entity shall not require any person to obtain, maintain, present, or use digital identification.

(b) A public entity shall not deny, delay, condition, or reduce any service, benefit, license, employment, education, or access based on a person's refusal or inability to use digital identification.

(c) Physical, non-digital identification authorized under Idaho law shall remain valid for all governmental purposes.

(3) (a) A public entity shall not require a person to surrender, unlock, or relinquish control of a personal electronic device for identity verification.

(b) Presentation of digital identification shall not constitute consent to search or access any other contents of a device.

(c) Information incidentally observed on a device shall not be used to establish probable cause or justification for further search or seizure.

(4) (a) Digital identification may be used only for immediate identity verification.

(b) A public entity shall not track individuals, retain identity data beyond a transaction, or use digital identification as a universal or shared credential across agencies.

(5) (a) A person aggrieved by a violation of this section may seek declaratory or injunctive relief and recover reasonable attorney's fees and costs.

1 (b) A court shall order immediate relief to remedy any ongoing viola-
2 tion, including requiring the public entity to provide the denied ser-
3 vice, benefit, or access without use of digital identification.

4 (c) In addition to other relief, a person whose rights are violated pur-
5 suant to this section may recover statutory damages in an amount no less
6 than five hundred dollars (\$500) and no more than two thousand five hun-
7 dred dollars (\$2,500) per violation.

8 (d) A court may impose a civil penalty not to exceed five thousand dol-
9 lars (\$5,000) per violation against a public entity that knowingly vio-
10 lates this section, provided that no civil penalty shall be imposed un-
11 less the public entity has received written notice of the violation and
12 fails to cure the violation within thirty (30) days of receipt of such
13 notice.

14 SECTION 2. SEVERABILITY. The provisions of this act are hereby declared
15 to be severable and if any provision of this act or the application of such
16 provision to any person or circumstance is declared invalid for any reason,
17 such declaration shall not affect the validity of the remaining portions of
18 this act.

19 SECTION 3. An emergency existing therefor, which emergency is hereby
20 declared to exist, this act shall be in full force and effect on and after
21 July 1, 2026.